

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
PAOLO CRUZATTY,

Plaintiff,

Index No:

VERIFIED COMPLAINT

- against-

THE CITY OF NEW YORK, KELVIN WINTERS,
MICHAEL MILONE, EDISON TAVERAS,
MUHAMMAD MALIK, TASHIDA WILSON,
BRIAN FLYNN, and JOHN DOES 1-10,

Defendants.
----- X

Plaintiff, PAOLO CRUZATTY by his attorneys, LIAKAS LAW, P.C., as and for this
Verified Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a common law tort and civil rights action in which plaintiff seeks relief for violation of his rights privileges and immunities guaranteed by the United States Constitution including the Fourth and Fourteenth Amendments, and federal law pursuant to 42 U.S.C. §1983, as well as pursuant to New York State and New York City laws which permit redress for same.

2. On or about January 27, 2023, New York City Police Department [hereinafter as “NYPD”] Police Officers KELVIN WINTERS, MICHAEL MILONE, EDISON TAVERAS, MUHAMMAD MALIK, acted in concert and/or otherwise jointly to unlawfully search and seize Plaintiff by striking him with their police vehicle, and further assault, batter, and use excessive force against him.

3. On or about January 27, 2023, NYPD Police Officers KELVIN WINTERS, MICHAEL MILONE, EDISON TAVERAS, MUHAMMAD MALIK, TASHIDA WILSON,

BRIAN FLYNN, and JOHN DOES 1-10, [hereinafter collectively referred to as the “Individual Defendants”], acted in concert and/or otherwise jointly to falsely arrest, maliciously prosecute, and to fabricate evidence against Plaintiff as well as to deny him adequate medical treatment and care for his injuries.

4. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

JURISDICTION AND VENUE

5. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, THE CITY OF NEW YORK, a Notice of Claim setting forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

6. More than 30 days have elapsed since Plaintiff’s Notice of Claim was served on Defendant.

7. A hearing pursuant to §50(h) of the General Municipal Law was held.

8. That all conditions precedent to the bringing of this action have been complied with.

9. Venue is proper in the Supreme Court of the State of New York, Bronx County, because the acts in question occurred in the State of New York, Bronx County, and THE CITY OF NEW YORK is subject to personal jurisdiction in the Supreme Court of the State of New York, Bronx County.

PARTIES

10. Plaintiff, PAOLO CRUZATTY (hereinafter “Plaintiff”), is a resident of the State of New York, County of the Bronx.

11. Plaintiff is a Hispanic male who speaks Spanish.

12. THE CITY OF NEW YORK (or “the CITY”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant CITY, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel.

13. At all times here relevant, Defendant CITY was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

14. Defendant KELVIN WINTERS was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

15. Defendant MICHAEL MILONE was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

16. Defendant EDISON TAVERAS was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

17. Defendant MUHAMMAD MALIK was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

18. Defendant TASHIDA WILSON was at all relevant times, a police officer holding the rank of Sergeant, employed by the CITY OF NEW YORK through its NYPD.

19. Defendant BRIAN FLYNN was at all relevant times, a police officer holding the rank of Captain, employed by the CITY OF NEW YORK through its NYPD.

20. Defendant FLYNN was assigned to the Brooklyn Court Section at the time of his involvement.

21. Defendant JOHN DOES 1-10 were at all relevant times, police officers and/or NYPD officials, employed by the CITY OF NEW YORK through its NYPD, whose real names are not known.

22. At all times mentioned herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

23. Defendant THE CITY OF NEW YORK is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants pursuant to the doctrine of *respondeat superior*.

FACTUAL ALLEGATIONS

24. On January 27, 2023, Plaintiff was operating a motorized scooter upon the roadway in Bronx County when he was followed by Defendants KELVIN WINTERS, MICHAEL MILONE, EDISON TAVERAS, MUHAMMAD MALIK who were operating an unmarked vehicle owned by the CITY OF NEW YORK.

25. While following Plaintiff in the unmarked vehicle, Defendants KELVIN WINTERS, MICHAEL MILONE, EDISON TAVERAS, MUHAMMAD MALIK failed to call in their location to the dispatcher or to identify that they were attempting to apprehend Plaintiff or to stop or seize him in any way.

26. Upon information and belief, Defendants did not use the police sirens but later falsely claimed they did in police paperwork.

27. Upon information and belief, Defendants KELVIN WINTERS, MICHAEL MILONE, EDISON TAVERAS, MUHAMMAD MALIK lacked the probable cause to seize, and otherwise chase Plaintiff and/or sought to stop him for reasons other than those permitted by law.

28. Defendant WINTERS was operating the vehicle.

29. Defendant MILONE occupied the front passenger seat of the vehicle.

30. Defendant TAVERAS occupied the rear passenger seat of the vehicle.

31. Defendant MALIK occupied the rear driver's side seat of the vehicle.

32. At all relevant times herein, Defendants WINTERS, MILONE, TAVERAS, and MALIK acted in concert.

33. Prior to Defendants' striking Plaintiff with their unmarked vehicle, Plaintiff had come to a complete stop on the 149th Street Bridge in the Manhattan bound lane.

34. Despite seeing that Plaintiff had come to a complete stop and was straddling his bike near the side of the bridge, Defendant WINTERS, acting in concert with his co-Defendants, angled the vehicle toward Plaintiff, striking his left leg.

35. Defendants WINTERS, MILONE, TAVERAS, and MALIK knew or should have known that Plaintiff had been struck with their vehicle as they acted in concert to use the vehicle as a weapon.

36. Defendants WINTERS, MILONE, TAVERAS, and MALIK knew or should have known that using a motor vehicle to strike an arrestee was a use of deadly force.

37. Defendants WINTERS, MILONE, TAVERAS, and MALIK, were unjustified in using force against Plaintiff under the circumstances.

38. At the time of the force used against Plaintiff, Defendants WINTERS, MILONE, TAVERAS, and MALIK knew or should have known that Plaintiff posed no threat.

39. The impact of Defendants vehicle hitting Plaintiff's leg while he was still straddling his bike caused severe fractures to Plaintiff's lower left leg.

40. As soon as their vehicle was stopped, Defendants WINTERS, MILONE,

TAVERAS, and MALIK exited the vehicle and began to further violently assault, batter, and use excessive force against Plaintiff while he was helpless.

41. Plaintiff did not resist or attempt to resist the officers.

42. Plaintiff did not strike nor attempt to strike any officer.

43. Plaintiff was not attempting to flee the officers when they began assaulting, battering, and using excessive force against him.

44. Plaintiff was unable to resist or to protect himself from Defendants' attack as he was still seated, straddling the bike, and could not move due to the severe fracture to his leg and because the officers were holding him in place while Defendants, including MILONE, punched in him the face and head repeatedly.

45. Defendants' assault of Plaintiff while he was helpless and unable to defend himself, caused Plaintiff numerous contusions, abrasions, lacerations, and injuries to his face and body.

46. Plaintiff, who spoke almost no English, was terrified.

47. Plaintiff tried to get the officers to stop their violent assault by saying "sorry," one of the only English words he knew, over and over again.

48. Defendant MILONE responded by repeatedly screaming "SHUT THE FUCK UP!" calling Plaintiff a "motherfucker" and otherwise taunting him.

49. While Plaintiff was rear cuffed on the ground, in a prone position, whimpering because he had begun to feel the pain emanating from his badly fractured leg and other injuries, MILONE angrily yelled "oh, now you wanna cry?"

50. Defendants WINTERS, MILONE, TAVERAS, and MALIK refused to call Plaintiff an ambulance despite knowing that he was seriously injured.

51. Defendants WINTERS, MILONE, TAVERAS, and MALIK knew that they had no

justification for using their police vehicle to strike Plaintiff.

52. Defendants WINTERS, MILONE, TAVERAS, and MALIK knew that they had committed a criminal assault by intentionally, and unjustifiably striking Plaintiff with a police vehicle.

53. Defendants WINTERS, MILONE, TAVERAS, and MALIK knew that they had struck Plaintiff with their vehicle, and violently assaulted, battered, and used excessive force against him, and that he was seriously injured but refused to call him an ambulance.

54. Defendants WINTERS, MILONE, TAVERAS, and MALIK knew or should have known that Plaintiff's leg was broken and/or that he was seriously injured and needed immediate medical attention.

55. Upon information and belief, Defendants MILONE and TAVERAS can speak and understand enough Spanish to know that Plaintiff said that his leg was broken.

56. Defendants WINTERS, MILONE, TAVERAS, and MALIK failed to notify the NYPD or dispatch that they had had a vehicle collision or that they had injured Plaintiff in order to ensure that evidence could not be collected from the scene or the vehicles.

57. The plaintiff was crying in pain and unable to put any weight on his left leg, but Defendants WINTERS, MILONE, TAVERAS, and MALIK made Plaintiff limp on his broken leg into the back seat of their car.

58. Defendants WINTERS, MILONE, TAVERAS, and MALIK refused to call for another unit to assist them because they knew that an internal investigation would be triggered if another unit arrived and saw the scene and Plaintiff's obvious and significant injuries.

59. Defendants WINTERS, TAVERAS, and MALIK, drove Plaintiff to the precinct and parked across the street from the precinct entrance.

60. Defendant MILONE drove Plaintiff's damaged scooter back to the precinct.

61. Defendants MILONE, TAVERAS, and MALIK then forced Plaintiff to walk on a badly broken leg, while rear-cuffed, from across the street where they parked the police vehicle to the precinct, up the stairs, and inside the precinct.

62. Defendants knew that Plaintiff's leg was broken when they did this.

63. Defendant MILONE informed Defendant MALIK that Plaintiff was saying he had a broken leg in Spanish before they forced him to walk on his broken leg.

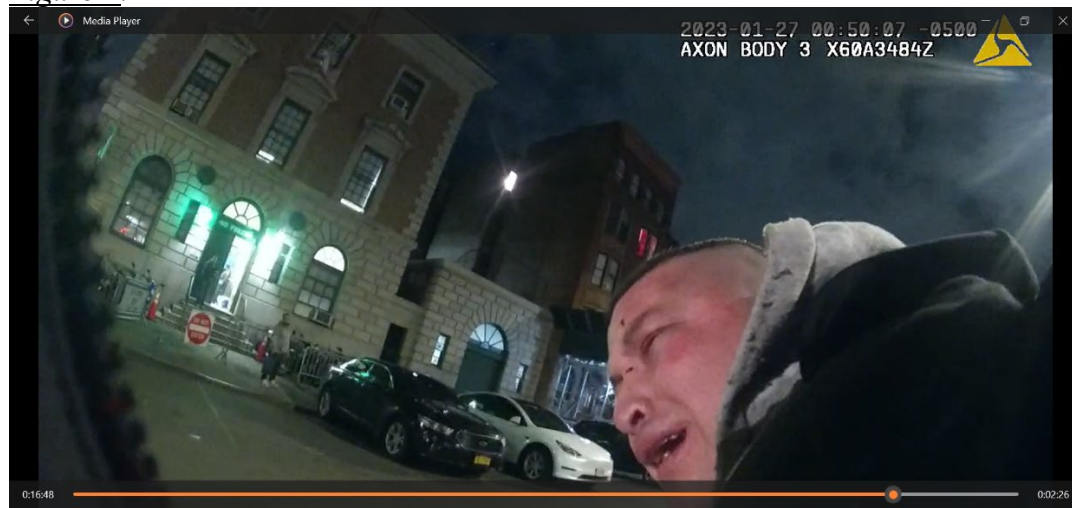
64. Plaintiff cried out in pain during the entire forced march into the precinct because the bones in his left lower leg were so badly broken and unstable that every step caused further pain and further damage to his leg.

65. Defendants knew that making Plaintiff walk on a badly broken leg was an abuse that amounted to torture, that it was inhumane, unsafe, and caused Plaintiff excruciating pain, yet they made him do so for nearly 3 minutes during which the other Defendants failed to intervene.

66. At points during this forced march, Plaintiff, was screaming in pain.

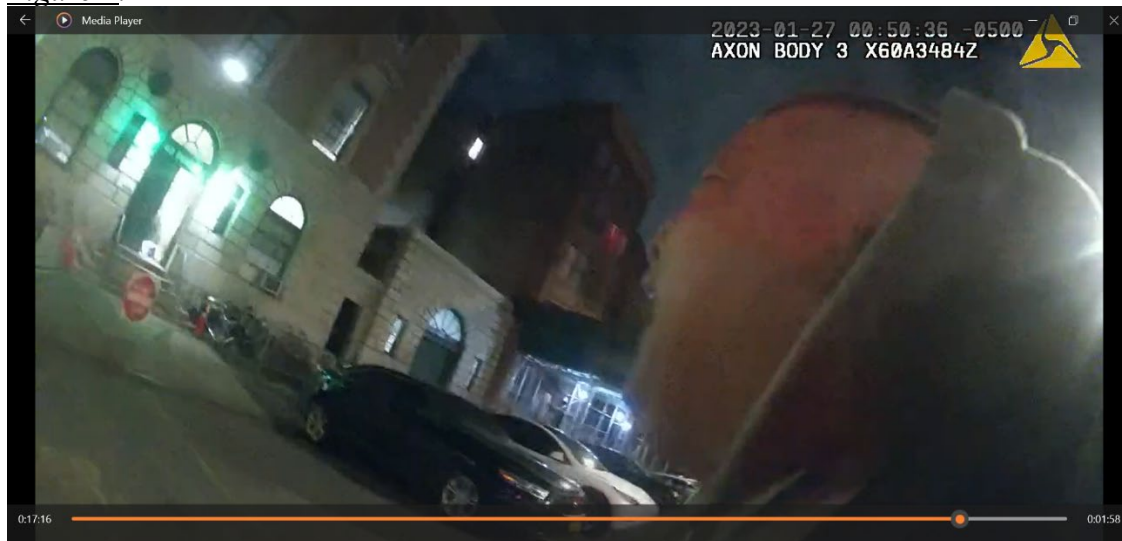
67. "Figure 1" below is a true and accurate screenshot of Plaintiff from Defendant MALIK's body camera and shows Plaintiff's badly beaten face contorted in pain.

Figure 1:



68. “Figure 2” below is a true and accurate screenshot of Plaintiff from Defendant MALIK’s body camera and shows Plaintiff screaming in pain when being forced to put pressure on his badly broken leg.

Figure 2:

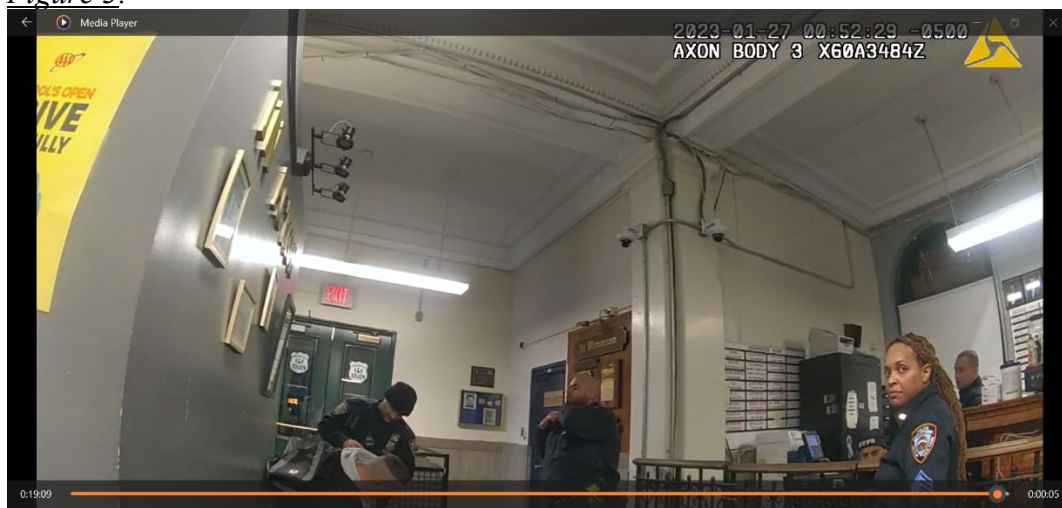


69. Defendants refused to call Plaintiff an ambulance until he was at the Precinct.

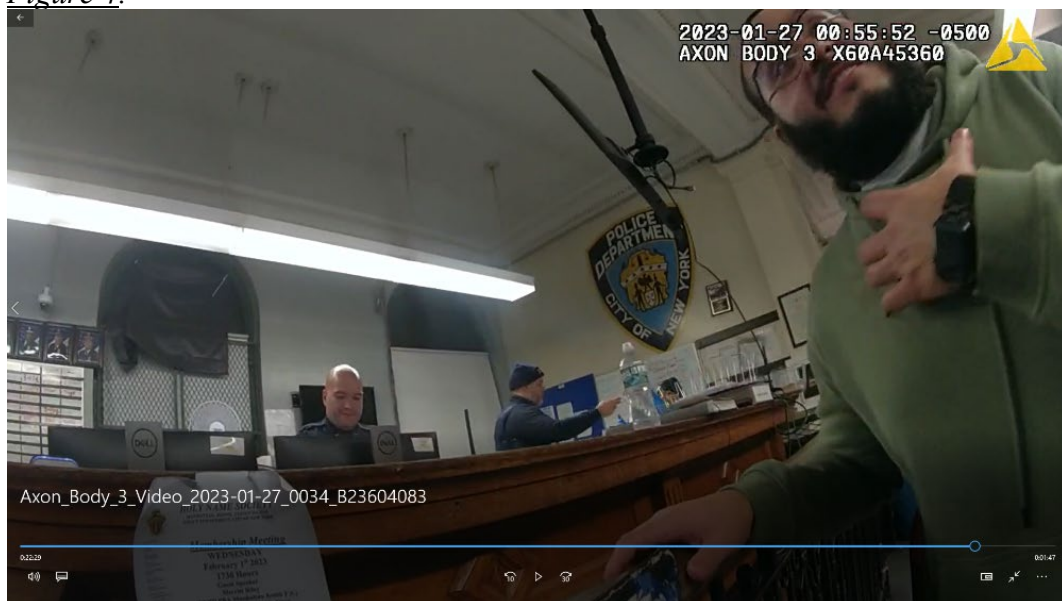
70. Defendants failed to obtain medical attention for Plaintiff in violation of Plaintiff’s Constitutional and human rights.

71. While at the Precinct, Defendants including the JOHN DOE defendants and Defendant WILSON signaled to Defendants MUHAMMAD and MILONE to deactivate their Body Worn Cameras (BWC) while they were actively questioning Plaintiff and while he was clearly suffering from his injuries.

72. ‘Figure 3’ below is a true and accurate screenshot of the final seconds of Defendant MALIK’s body camera right before Defendant WILSON, who is on the lower right of the frame, mouths the words “turn it off” to MALIK.

Figure 3:

73. 'Figure 4' below is a true and accurate screenshot of a JOHN DOE defendant signaling to Defendant MILONE to turn off his body worn camera at the precinct.

Figure 4:

74. Defendant WILSON physically intervened and turned off Defendant MILONE's BWC when he failed to notice the illicit signals from her and the other officers to do so.

75. 'Figure 5' below is a true and accurate screenshot of Defendant WILSON forcibly turning off Defendant MILONE's body worn camera at the precinct.

Figure 5:

76. Upon information and belief, Defendants conspired to cover up that excessive force had been used against Plaintiff by telling the CITY's EMS employees that Plaintiff was injured when he crashed his bike.

77. Defendants knew that this claim was untrue, and that Plaintiff's vehicle was fully stopped at the time they intentionally struck him with their police vehicle.

78. Defendants and the CITY's other employees attempted to interfere with Plaintiff's medical treatment and care in order to hide their misconduct.

79. Defendant FLYNN assisted Defendants in covering up their unlawful acts by making and/or approving their clear misstatements and/or false allegations in official NYPD paperwork.

80. Defendants, including FLYNN, knew or should have known that the false statements made in official paperwork would be submitted to the District Attorney and used to prosecute Plaintiff and/or support the false statements made by the defendants.

81. Anyone viewing the footage from Defendants' Body Worn Cameras (BWC)

including FLYNN and WILSON knew that the force used against Plaintiff was not justified.

82. Defendants refused to preserve the NYPD vehicle's Event Data Reorder or similar evidence that would have demonstrated the speed at which the vehicle was traveling when it impacted Plaintiff's leg and would have proven that an impact occurred.

83. Defendants had originally charged Plaintiff with misdemeanor reckless driving and a violation but increased the charges after they learned that Plaintiff was admitted to the hospital.

84. After Plaintiff as admitted to the hospital, Defendants charged Plaintiff with violations of: New York State Penal Law (N.Y. Pen. Law) § 120.25, Reckless Endangerment in the First Degree, a D Felony; and N.Y. Pen. Law § 270.25, Unlawfully fleeing a police officer in the third degree, an A misdemeanor; and New York State Vehicle and Traffic Law (VTL) § 1212, Reckless Driving, a U Misdemeanor; and N.Y. Pen. Law § 240.20 (05), Disorderly Conduct: Obstructing Traffic, a violation.

85. Defendants acting in concert made false statements in NYPD paperwork in support of these charges which they knew would be used to prosecute Plaintiff and to justify the unlawful acts committed against him.

86. Defendants knew that these charges were false.

87. The Prosecutor determined that the charges of Penal Law §§ 120.25 and 270.25 were facially insufficient and/or lacked probable cause and/or that the Defendants were not credible.

88. The prosecutor, relying on Defendants' false information and false evidence, charged Plaintiff with violating: N.Y. Pen. Law § 120.20, Reckless Endangerment, an A Misdemeanor; and VTL § 1212, Reckless Driving, a U Misdemeanor; and N.Y. Pen. Law § 240.20 (05), Disorderly Conduct: Obstructing Traffic, a violation.

89. At all times hereinafter mentioned, Defendants had a duty to intervene in the unlawful acts and misconduct committed by their co-Defendants but failed to do so.

90. Defendants processed Plaintiff's arrest, prepared paperwork related to his arrest, and conferred with the District Attorney's office to bring criminal charges against Plaintiff.

91. Defendants communicated with a representative of the District Attorney's Office and presented false information and/or evidence to the prosecutor despite knowledge that this false information would be used to prosecute Plaintiff.

92. Defendants communicated with a representative of the District Attorney's Office and failed to provide the District Attorney with relevant information, including exculpatory information that would have terminated and/or prevented the prosecution of Plaintiff.

93. The plaintiff was held at the hospital in NYPD custody until January 31, 2023, to undergo emergency surgery to stabilize the fractures to his leg.

94. After his release from the hospital, Plaintiff was taken to court and arraigned on or about January 31, 2023, and thereafter, released on his own recognizance.

95. The plaintiff was arraigned on January 31, 2023, and released on his own recognizance.

96. Plaintiff was required to appear in Criminal Court on multiple occasions thereafter more times before the case was ultimately dismissed on or about April 3, 2023.

97. Plaintiff has undergone multiple surgeries to repair the significant, and permanent injuries and sequelae thereof caused by Defendants.

**FACTS RELEVANT TO PLAINTIFF'S *MONELL* CLAIM
AND RELATED STATE LAW CLAIMS**

98. Upon information and belief, the CITY knew or reasonably should have known that Defendants were unfit to be uniformed law enforcement officers prior to the date of incident.

99. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents of misconduct.

100. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents of perjury and/or the submission of false and/or inaccurate misstatements in official records.

101. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents that were proof or indicia of corruption.

102. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents that were proof or indicia of violent propensities to injure, abuse, and/or commit civil rights violations.

103. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior behavior that was proof or indicia of an inability to control their anger and/or inappropriate behavior.

104. The CITY failed to investigate the prior incidents, complaints, and/or information it had regarding Defendants.

105. The CITY failed to conduct proper background investigations of Defendants at the time they were hired.

106. The CITY failed to conduct proper investigations of Defendants after receiving serious complaints about Defendants behaviors, propensities, and/or conduct.

107. The CITY failed to intervene to reprimand, retrain, punish, and terminate Defendants.

108. These failures are not isolated incidents, but rather, the natural and probable consequence of the CITY's longstanding failure to investigate, monitor, punish, and otherwise

intervene in the misconduct, corruption, and criminal acts committed by members of the NYPD, including Defendants.

109. These failures are also the natural and probable consequence of the CITY's longstanding failure to encourage, assist, and train its officers to report and intervene in misconduct they observe and/or failure to punish officers for failing to intervene as required by law, and department guidelines.

110. Despite the prior findings by the Mollen Commission which exposed mismanagement, coverup, and corruption in the punishment precinct level disciplinary process, the CITY allowed the majority of the incidents involving Defendants to be "resolved" at the precinct or borough level instead of to be investigated by the Internal Affairs Bureau.

111. The CITY, through its NYPD, has reduced the effectiveness of its internal discipline through the use of the Threat, Resistance, Injury (TRI) report process which allows officers, with the assistance of a supervisor, to ensure that IAB is not called to investigate incidents.

112. The CITY's failures stretch back at least as far as the Mollen Commission which revealed rampant abuse, corruption, and criminal activity by NYPD officers and a persistent failure and/or refusal to investigate these acts and omissions in order prevent oversight and/or a broadening of investigations into the misconduct endemic to of the NYPD and/or to prevent embarrassment of the department via public awareness and news reporting of incidents of misconduct which often results in the termination of both high-ranking and rank-and-file members.

I. For Nearly 30 Years, the CITY has Prevented Significant Independent Inquiry into the NYPD

113. On July 7, 1994, chaired by the Hon. Milton Mollen, the eponymous Mollen Commission, released its public final report titled "The City of New York Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police

Department” [hereinafter “Mollen Comm’n Final Report” or “Final Report”].

114. The Mollen Commission’s findings, as discussed more thoroughly below, were explosive, and evidenced a systematic, and sometimes intentional failure, at every level of the NYPD to investigate corruption, abuse, and misconduct by its officers including sometimes high-ranking members of the NYPD.

115. The corruption, abuse, and misconduct exposed by the Mollen Commission included, but was not limited to: police officers robbing drug dealers, selling drugs and guns that they had stolen, randomly assaulting and battering citizens for fun, raping sex workers, running protection for gang members and drug dealers, engaging in bribery scams including with tow truck operators and those they issued summonses to, drinking and doing drugs while on and off duty, burglarizing/robbing/stealing guns, drugs, money, and valuables from citizens, tampering with evidence including carrying “drop guns” and other evidence to plant on arrestees and/or those they may shoot, frequently committing perjury and/or submitting false information to prosecutors to secure convictions and/or cover up their misdeeds, as well as a general wide-spread refusal to report colleagues who commit misconduct and crimes.¹

116. Prior to the Mollen Commission, the Knapp Commission (1970-1973), the Helfand Investigation (1949-1950), the Seabury Investigation (1932), the Curran Committee (1912), and the Lexow Commission (1895) each exposed patterns of corruption and abuse at the NYPD.

117. Nearly every twenty years, the then existing patterns and practices of widespread corruption and abuse at the NYPD were exposed by these independent commissions.

118. It has been almost 30 years since the Mollen Commission issued its final report.

¹ Mollen Comm’n Final Report, (July 7, 1994) available online at: www.nyc.gov/assets/doi/images/content/timeline/MollenCommissionNYPD.pdf (last accessed Nov. 26, 2023).

119. Following the Mollen Commission's bombshell hearings and reports, the CITY formed the Commission to Combat Police Corruption (CCPC) which is allegedly an independent panel formed to monitor and evaluate the anti-corruption efforts of the NYPD which were found to be largely ineffective, at times intentionally so, by the Mollen Commission.

120. The CCPC has no authority to investigate instances of police corruption or misconduct, it merely issues annual reports on whether, in its determination, the NYPD is effectively monitoring investigating and corruption, based on the information that NYPD deigns to offer it.

121. All members of the CCPC are appointed by the Mayor of the CITY and serve at his pleasure.

122. The CCPC cannot even issue a subpoena unless the Department of Investigation (DOI), a mayoral agency of the CITY, and thus, part of the CITY itself, allows it to.

123. Upon information and belief, the CCPC was not created for its stated reasons alone, but also and/or solely to offer the appearance of sufficient independent oversight in order to avoid the appointment of another commission like the Mollen Commission which would have the power to issue subpoenas, conduct independent investigations, and to make findings supported by evidence.

124. As discussed by the Mollen Commission at length, the NYPD has a pattern and practice of endangering the safety of the public by allowing officers who commit misconduct and/or are otherwise abusive and/or corrupt, to avoid detection, prosecution, discipline, and termination, to spare the department potential embarrassment and/or to prevent civil and/or criminal consequences for those who commit, support, and/or turn a blind eye to rampant misconduct, corruption, and abuse at NYPD.

125. An independent commission, with at least the powers and independence granted to the Mollen Commission is both long overdue and desperately needed.

126. The Mollen Commission's Final Report is incorporated hereto by reference.²

127. The CITY received the findings, testimony, evidence, and facts relied upon and reported by the Mollen Commission and has had the findings in its possession for nearly thirty years.

II. Of "Rats" and Policemen:

128. As succinctly stated by the Mollen Commission, "the problem of police corruption extends far beyond the corrupt cop. It is a multi-faceted problem that has flourished in parts of our City not only because of opportunity and greed, but because of **a police culture that exalts loyalty over integrity; because of the silence of honest officers who fear the consequences of "ratting" on another cop no matter how grave the crime...**"³

129. Consistent with the issues reported by the Mollen Commission thirty years ago, officers today do not report misconduct, abuse, and criminal acts of their fellow officers for fear of being "labeled a "rat" [and because they] lack[] confidence in the Department's commitment to uncover corruption and maintain confidentiality."

130. The Mollen Commission also noted that officers had told them "that their careers would be ruined" if they reported a fellow officer's misconduct and that "[t]he evidence shows that this belief was not unfounded."

131. As in the days of the Mollen Commission, the NYPD continues to ensure it is

² Portions of the Final Report are available at the link at FN1. Plaintiff is limited by the facts presently known and available to Plaintiff and will seek discovery of the full Mollen Commission files as in the CITY's possession during discovery.

³ Mollen Comm'n Final Report at FN1, page 4 (emphasis added).

difficult and dangerous for officers to report misconduct.

132. Despite the NYPD's actual knowledge for more than thirty years that members of its force were in large numbers failing, to report corruption, fraud, abuse, misconduct and criminal acts by their fellow officers, and thus, themselves committing unlawful acts, civil rights violations, and misconduct, the CITY has done little, if anything, to make officers more likely to intervene in the unlawful acts of their colleagues or even to report same.

133. Here, the individual Defendants as well as the numerous other NYPD officers witnessed the force used against Plaintiff, his denial of medical treatment, and who witnessed and/or knew about the false statements made against him, while he was handcuffed at the precinct, but did nothing, and said nothing, thereby ensuring that the blatant constitutional violations committed in their presence continued, including further physical assault, and denial of medical treatment.

134. Patrol Guide 221-10 contains the following three sentences which have remained virtually unchanged for decades: "Failure to intervene in the use of excessive force or report excessive force or failure to request or ensure timely medical treatment for an individual is serious misconduct that may result in criminal and civil liability and will result in department discipline up to and including dismissal. If a member of service becomes aware of the use of excessive force or failure to request or ensure timely medical treatment for an individual, the member must report such misconduct to the Internal Affairs Bureau Command Center. This report can be made anonymously."⁴

135. The policy does not provide any information on how to contact IAB or what protections will be given to officers who cooperate with "the rat squad" as IAB is commonly referred to by officers.

136. The policy does not discuss the protections for whistleblowers or provide any

⁴ NYPD Patrol Guide 221-10.

information that would allow an officer to feel comfortable reporting a use of force that was unconstitutional given that they too will be deemed a “rat” for doing so.

137. The policy does not even include the number that officers can call to make such a report.

138. The NYPD does not even provide any elaboration on this three-sentence policy, buried among thousands of pages of other policies.

139. Despite the three-sentence policy promulgated by the CITY, the actual custom and practice of the NYPD is that when an NYPD officer reports on another officer, they are a “rat” forever and face perpetual ostracization.

140. The NYPD even has a custom and practice of identifying and thereby deriding an officer who seeks to follow the rules, including the Patrol Guide, and the laws of the State of New York, as a “shakebox” or “shakey” indicating they are not “good cops” or “on the level” cops who and cannot be trusted with preferential assignments or even invited to after work events.

141. Being labeled “a rat” is worse still and is often the death knell of any NYPD career.

142. Reporting fellow officers in an organization as insular as the NYPD, is regarded as an act of social deviance, that feels like a criminal act and is often treated like one.

143. As former Detective Jeffrey McAvoy recalled to the New York Times, when he called IAB in 2008 to report a lieutenant of stealing thousands of dollars from a drug dealer, he was physically ill at the idea of following this policy: “I went to the bathroom about a dozen times and threw up, actually physically threw up, before I made the call.”⁵

144. Other officers labeled “rats” have been bullied, harassed, and ostracized by those they

⁵ Goldstein, J. N.Y. Times, (Jun. 24, 2012), “Officers, Exhorted to Report Corruption, Still Fear Retaliation” available at: <https://www.nytimes.com/2012/06/25/nyregion/new-york-police-officers-face-retaliation-for-reporting-corruption.html> (last accessed Feb. 26, 2024).

once considered not just coworkers, but family.

145. Some officers labeled “rats” or who have testified about the crimes of other officers have been pushed out of the department, and some have attempted suicide.

146. In 2011, a NYPD officer and union delegate allegedly touched the third rail of the one train in a suicide attempt after being subpoenaed to testify in the Bronx ticket fixing inquiry.

147. Being labeled a “rat” can also get an officer killed.

148. As former NYPD police officer Bernard Cawley put it when he testified before the Mollen Commission: “...it was the Blue Wall of Silence. Cops don’t tell on cops. And if they did tell on them, **just say if a cop decided to tell on me, his career’s ruined. He’s going to be labeled as a rat....**And chances are **if it comes down to it, they're going to let him get hurt.**”⁶

149. Moreover, despite providing training and instruction for literally every possible piece of paperwork that may be filled out and endless videos and tactical training scenarios for situations that most officers will never encounter, the NYPD appears to provide zero training or instruction on how to effectively intervene in excessive force, false arrest, and/or other misconduct and civil rights violations, or how to safely report their fellow officers.

150. The NYPD has failed to develop specific and realistic instruction or regular training on how to navigate detecting, intervening in, and reporting misconduct, including the use of excessive force.

151. The NYPD has also failed to investigate and discipline instances where officers are present for or know about misconduct, including excessive force, but fail to intervene and/or report it.

⁶ Testimony of Bernard Cawley before the Mollen Commission available at: https://youtu.be/L_1hxKgFsWw?si=JGtFz8lw2wmESKK1 (last accessed Nov. 26, 2023).

152. This sends a clear message that if an officer witnesses their fellow officer commit acts of corruption, misconduct, or even crimes – they should keep their mouth shut.

153. In fact, the Mollen Commission heard testimony that officers had been explicitly told at roll call “if you get caught, keep your mouth shut.”⁷

154. THE CITY OF NEW YORK knows to a moral certainty that failing to provide training and policies on how to intervene in and report misconduct make it unlikely that anyone will report misconduct or intervene to stop it from occurring.

155. THE CITY OF NEW YORK knows to a moral certainty that allowing these customs and practices to continue allows serious misconduct to go unreported and encourages officers, including those who witness misconduct, to present false evidence and/or false information in official reports and/or to the prosecution in order to assist in covering up misconduct.

156. THE CITY OF NEW YORK knows to a moral certainty that its acts and omissions will allow officers who commit significant misconduct, including civil rights violations, to remain on the job where they can harm people – including people like Plaintiff.

157. THE CITY OF NEW YORK knows to a moral certainty that failing to enact policies to make it easier and safer for officers to report misconduct will mean that most constitutional violations, including egregious violations involving deaths and horrific acts, will go unreported or will be actively covered up.

158. THE CITY OF NEW YORK has done nothing to revise its policies or training to prevent these inevitable consequences of its failures from harming citizens like Plaintiff.

III. ‘TRI’ Not to Call IAB:

159. Following the July 17, 2014, homicide of Eric Garner, and the November 20, 2014,

⁷ Mollen Comm’n Final Report at *3.

homicide of Akai Gurley, both at the hands of NYPD officers, the NYPD made significant changes to its investigations of excessive force.

160. Those changes have, upon information and belief, prevented the independent and uncorrupted investigation into acts of excessive force and assisted officers in covering up incidents of excessive force, including by preventing IAB from investigating serious incidents like the one at issue here.

161. Prior to 2015, when a NYPD officer used excessive force that caused death or significant injury, the incident resulted in a “callout” to IAB who would dispatch officers to interview injured arrestees or investigate deaths independent of the rest of the NYPD.

162. In 2015, the NYPD developed the Force Investigations Division (FID) which was allegedly created to investigate uses of force.

163. The policy changes mandated that where NYPD officers discharged their firearms, and/or where an arrestee died, or was likely to die following an interaction with NYPD, the FID would have sole jurisdiction to investigate whether the force used was justified.

164. The policy change essentially divested the authority of IAB to investigate any deaths at the hands of NYPD.

165. FID is not independent in the manner that IAB was intended to be.

166. Upon information and belief, the true purpose of FID was to usurp the jurisdiction of IAB in serious force cases, including all death cases so that the investigation can be guided to find that the officers were justified in using force, including deadly force.

167. IAB investigations of custodial deaths had led to multiple prosecutions of NYPD officers prior to the development of FID.

168. Upon information and belief, to date, FID’s investigations have not led to any

prosecutions of NYPD officers.

169. Upon information and belief, FID spends most of its extensive resources gathering evidence to justify uses of excessive force, discredit witnesses who do not support the NYPD's narrative, delaying questioning of the subject officers, and controlling evidence (including in allowing significant evidence to be ignored) collection from crime scenes of serious including fatal, uses of police force.

170. Upon information and belief, to date, FID has consistently found that every NYPD officer who used fatal force was justified in doing so.

171. Upon information and belief, to date, FID has consistently found that every NYPD officer who used fatal force was justified in doing so.

172. Upon information and belief, FID is consistently staffed with investigators who lack the knowledge, skills, abilities, and work-ethic to conduct a complex investigation, and/or those who have significant force histories, corruption histories, and/or credibility issues – thus leaving investigations vulnerable to both substandard police work and corruption.

173. On May 27, 2016, the NYPD revised its Force Policy reporting guide and implemented the TRI report.

174. "Figure 6" below is a true and accurate copy of the first page of the May 27, 2016, Force Policy Revision:

Figure 6:

PATROL GUIDE 221 TACTICAL OPERATIONS

USE OF FORCE – INVESTIGATIVE RESPONSIBILITY AND REPORTING GUIDE

LEVEL OF FORCE	EXAMPLES OF FORCE	OR	TYPE OF INJURY	SUPERVISOR	METHOD OF REPORTING
LEVEL 1	• Hand or foot strike • Forcible take-down • Wrestling a subject to ground • OC spray • CEW/Taser in cartridge mode • Mesh restraining blanket		• Physical injury • Alleged¹ excessive Level 1 force with no injury	Immediate Supervisor (Must be one rank above the subject officer) <i>CEW/Taser = Lieutenant or Above³</i>	Threat, Resistance, or Injury Incident Worksheet
LEVEL 2	• Intentional striking of a subject with an object (e.g. impact weapon) • Police canine bite • CEW/Taser in drive stun mode		• Substantial physical injury • Alleged or suspected² excessive force with physical or substantial physical injury • Attempted suicide by prisoner	C.O./X.O./Duty Captain (Must respond to scene) <i>Borough Investigations Unit May Assist</i>	Threat, Resistance, or Injury Incident Worksheet & Investigating Supervisor Assessment Report
LEVEL 3	• Deadly physical force • Physical force that is readily capable of causing death or serious physical injury		• Serious physical injury • Alleged or suspected excessive force with serious physical injury • Attempted suicide by prisoner with serious physical injury	Internal Affairs Bureau (Must respond to scene)	Threat, Resistance, or Injury Incident Worksheet & Investigating Supervisor Assessment Report
FIREARM DISCHARGE	• Discharge of a firearm		• Person dies • Seriously injured and likely to die immediately prior to police custody, during apprehension, or while in police custody	Force Investigation Division (Must respond to scene)	Threat, Resistance, or Injury Incident Worksheet & Typed Letterhead (UF49)

>ALLEGATIONS¹ of excessive force are typically made by civilian witnesses or subjects while SUSPICION² of excessive force typically arises from a supervisor's initial assessment or subsequent investigation into an incident.

>Discharge of a CEW/Taser requires the Immediate/Investigating Supervisor to be in the rank of Lieutenant or above (discharges by ESU may be handled by a Sergeant).³

>Ordering a subject to lay on the ground or guiding them in a controlled manner, drawing your firearm, using Velcro restraint straps, or using a polycarbonate shield to restrain someone is not considered a reportable use of force in the context of this procedure.

>If one incident contains multiple MOS using varying levels of force or non-MOS receive varying levels of injury, the supervisor responsible for the highest force/injury level will conduct the investigation.

>A TRI-Investigating Supervisor Assessment Report is completed by the CO/XO/Duty Captain or IAB to document the results of their investigation of a Level 2 or 3 incident.

FORCE POLICY REVISION

REVISED MAY 27, 2016

175. Prior to the use of the TRI report, IAB was called to the scene of in-custody injuries that resulted in a visit to the hospital.

176. With the advent of the TRI report, if a supervisor claims or asserts that an injury occurred before the arrest, there is no investigation.

177. With the advent of the TRI report, if a supervisor claims or asserts that an injury was not serious, there is no IAB investigation unless the officers admit they used deadly physical force.

178. With the advent of the TRI report, if a supervisor claims or asserts that an injury was not serious, even where the injury required a visit to the hospital, but the arrestee was not admitted, there is no IAB investigation unless the officers admit they used deadly physical force (except for a firearm discharge which is only investigated by FID).

179. Despite the NYPD defining serious physical injury to include fractured/broken bones or any injury from police action or contact resulting in hospital admission, Defendants falsely reported that Plaintiff was not seriously injured to avoid IAB investigation.

180. Despite the NYPD defining serious physical injury to include fractured/broken bones or any injury from police action or contact resulting in hospital admission, Defendants falsely reported that Plaintiff was not seriously injured to avoid IAB investigation.

181. This new scheme results in fewer investigations into force being conducted by IAB and therefore, decisions about whether force was excessive are being handled at the precinct or borough level.

182. The Mollen Commission explicitly warned about this type of approach which can lead to a lack of investigation at the precinct and borough level when incidents, like the one at hand, are not investigated or not sufficiently investigated or categorized.⁸

183. This allows officers who are serial offenders of force incidents and other corruption to go undetected in a similar manner to the way that the similar setup including borough investigations and “tickler files,” allowed officers like Bernard Cawley and Michael Dowd to engage in uncontrolled acts of corruption and abuse.

184. As the Mollen Commission demonstrated, the officers with the most complaints including even complaints for discourtesy and suspected corruption and theft, were the most likely to be engaged in rampant abuse including excessive force, corruption, and criminal activity.

IV. Histories of the Defendants:

185. Plaintiff does not presently have access to all relevant records for each Defendant,

⁸ See Mollen Comm’n Final Report, Section V “Fragmenting, Minimizing, and Concealing Police Corruption Cases” at 90-100.

however, even the limited records available demonstrate that the Individual Defendants have significant corruption, abuse, and excessive force histories.

186. The CITY has failed to sufficiently investigate, properly retrain, supervise, and terminate each of the Defendants despite the notice provided for each Defendant.

187. Upon information and belief, and based on the records in the possession of the district attorneys' offices of the five boroughs, the NYPD, and the Civilian Complaint Review Board defendants histories reveal the following:

Police Officer Michael Milone

188. Defendant MILONE has previously used excessive force against arrestees, including an incident where he headbutted a 17-year-old, Hispanic prisoner inside of the 40th precinct without justification on October 22, 2019.

189. On or about June 16, 2020, Defendant MILONE pleaded guilty to a NYPD disciplinary charge related to the unlawful use of force during the October 22, 2019, headbutting incident as part of an internal investigation.

190. The investigation into MILONE was only initiated when a prosecutor viewed the video of the incident and contacted the NYPD and was not initiated by the supervisor reviewing the TRI who was obligated to review the same footage.

191. Upon information and belief, MILONE had also falsely charged his victim with felony assault on a police officer and had falsified police paperwork by failing to mention that he headbutted a juvenile prisoner.

192. Upon information and belief, NYPD failed to address or investigate MILONE's misconduct related to the false statements, malicious prosecution, official misconduct, and/or fabrication of evidence.

193. Despite the violent nature of his crime, Defendant MILONE's guilty plea resulted in the loss of 15 vacation days.

194. Defendant CITY OF NEW YORK, including then Police Commissioner, Dermot Shea, and other high-ranking officials all approved MILONE's grossly ineffective plea agreement and failed to intervene to ensure that he was properly punished and/or terminated given his propensity for violence, malicious prosecution, fabrication of evidence and otherwise unfitness for policework.

195. Despite being sworn in 2015, Defendant MILONE has several other disciplinary investigations which resulted in substantiated findings, but no punishment.

Police Officer Edison Taveras

196. Defendant TAVERAS has previously used excessive force against arrestees, including an incident on May 17, 2022, where he discharged an unauthorized weapon, specifically personal use Oleoresin Capsicum spray in the face of an arrestee without justification.

197. On or about November 1, 2022, Defendant TAVERAS pleaded guilty to a NYPD disciplinary charge related to the unlawful use of force during the May 17, 2022, excessive force incident as part of a command level internal investigation.

198. Defendant TAVERAS' only punishment for using an unauthorized weapon on an arrestee in an unjustified fashion was the loss of one vacation day.

199. Defendant WILSON was supervising TAVERAS and was present during the May 17, 2022, incident but failed to report it.

200. Defendant TAVERAS has been present for and involved in several disciplinary incidents involving the other Defendants.

201. Despite being sworn in 2016, Defendant TAVERAS has several other disciplinary

investigations which resulted in substantiated findings, but no punishment.

Police Officer Kelvin Winters

202. Defendant WINTERS has a substantial number of investigations and disciplinary findings for someone who has only been employed since 2016.

203. Upon information and belief, WINTERS disciplinary history shows repeated findings for which he was not adequately investigated and/or disciplined including findings indicating possible corruption related to multiple occasions where he reported sensitive NYPD equipment “missing” – an event that never occurs for most officers but for WINTERS has happened at least twice in less than two years.

204. Defendant WINTERS also has repeated and substantiated complaints of failing to activate his body worn camera.

205. Defendant WINTERS was also involved in multiple allegations of excessive force including an incident where he and Defendant TAVERAS both tazed the same arrestee when supervised by Defendant WILSON.

206. Defendant WINTERS has not been disciplined for the majority of his substantiated disciplinary findings.

Police Officer Muhammad Malik

207. Defendant MALIK has also been employed since 2016.

208. Upon information and belief, MALIK’s disciplinary history shows potential involvement in two of the more traditional corruption activities at the NYPD, specifically those involving DARP towing incidents and court non-appearance sometimes called “ticket fixing.”

209. Non-appearances in court are tracked by IAB because of the recurrent history of corruption called “ticket fixing.”

210. “Ticket fixing” is the practice of not appearing in traffic court when the ticket is returnable which results in the ticket being dismissed.

211. This is traditionally done for one of two reasons: an NYPD officer calls the ticketing officer and asks them to “fix” the ticket the officer issued to a friend or family member or the ticketing officer “fixes” the ticket in exchange for something of value.

212. In 2011, a Bronx Grand Jury indicted fifteen police officers and a number of civilians related to ticket fixing and related crimes uncovered in the corruption investigation.

213. Just over a year into his employment with NYPD, Defendant MALIK missed his first court date on December 28, 2017.

214. On or about August 20, 2018, Defendant MALIK missed a second court date which triggered an internal affairs investigation.

215. MALIK was given a command discipline for these substantiated incidents.

216. On or about August 25, 2022, Defendant MALIK was also involved in an improper “rotation tow” which revealed that he had previously improperly “rotation towed” at least four other vehicles taken from arrestees.

217. The typical rotation tow scam involves an officer taking kickbacks from a tow-truck company to direct vehicles damaged in collisions to their company and/or to auto repair shops.

218. The enduring prevalence of this type of scam, which predates the Mollen Commission and was even discussed in the final Commission report, is what led to the mandatory use of a rotating schedule of tow truck companies.

219. Here, MALIK ordered rotation tows of multiple arrestee’s vehicles which should not have been towed at all.

220. Defendant WILSON was accused of having improperly signed off on two of these rotation tows and the claims against her were substantiated.

221. Defendant MALIK was also involved in a partially substantiated use of force with Defendant MILONE in February of 2021.

Police Sergeant Tashida Wilson

222. Defendant WILSON has been employed by the NYPD since 2007.

223. Upon information and belief, Defendant WILSON has an extensive disciplinary history including a number of on-duty and off-duty incidents resulting in more than 20 entries in her Central Personnel Index related to discipline and/or investigations into misconduct.

224. WILSON has repeatedly been subject to Level 1 force monitoring as a result of receiving at least three civilian complaints within a given year.

225. WILSON has repeatedly been the subject of multiple ticket fixing investigations caused by her non-appearance in court or her claim that she could not recall incidents in court and/or did not have notes to refer to when testifying.

226. WILSON has repeatedly been investigated for her involvement in off duty incidents where she was accused of making threats of violence and being involved in physical altercations.

227. Defendant WILSON has been previously placed on modified duty.

228. Upon information and belief, Defendant WILSON was found to have engaged in multiple incidents of misconduct including issuing an unlawful summons, and making an untruthful statement related to an incident of force on September 13, 2022.

229. Defendant WILSON has not been disciplined for the majority of her substantiated disciplinary findings.

ALLEGATIONS RELATED TO DEFENDANTS' CIVIL CONSPIRACY

230. Defendants engaged in a civil conspiracy, and/or common scheme which connects and/or links each Defendant with each of the causes of action alleged herein.

231. Defendants conspired and/or otherwise agreed among themselves and/or other agents, servants, and/or employees of the CITY, to cover up the unlawful acts committed against Plaintiff during and after his arrest.

232. Defendants carried out overt acts in furtherance of their conspiracy and/or agreement to cover up their misconduct, including the excessive force used against Plaintiff, including, but not limited to: Refusing to report the acts and omissions committed by Defendants to the NYPD's Internal Affairs Bureau (IAB); and falsely reporting that Plaintiff had crashed his vehicle; and hiding, destroying, and/or spoliating evidence of Defendants acts and omissions which constituted civil rights violations; and failing to document or notify any supervisor that Plaintiff had been struck with a NYPD vehicle in order to spoliage the black box, EDR, and other data and evidence held within in the NYPD vehicle that could be used to prove Defendants struck Plaintiff; and Failing to classify the force used as Level 3 to avoid an Internal Affairs Bureau investigation; and Failing to establish a crime scene at the location of the collision pursuant to Patrol Guide 221-03 despite knowing that Plaintiff had been intentionally struck with a police vehicle and sustained a broken leg as a result thereof; and Failing to obtain permission for the alleged vehicle pursuit because Defendants knew they did not have reasonable justification for apprehending Plaintiff; denying Plaintiff adequate and timely medical treatment and care; Making false statements in official paperwork; and Making false statements to the District Attorney; and Making false statements to CCRB and/or Internal Affairs.

233. Defendants carried out these acts intentionally, and in furtherance of their

conspiracy.

234. The Defendants were not present during the initial incident, ratified the conduct thereafter by joining in the conspiracy to cover up the misconduct including the use of excessive force against Plaintiff.

235. Upon information and belief, Defendants had carried out similar conspiracies on prior dates.

236. Each conspirator engaged in these acts to protect themselves and their colleagues, but more so, because of deep-seated patterns and practices to do so in order to protect the reputation of the NYPD and its officers.

237. Defendants' conspiracy resulted in damage and/or injury to Plaintiff.

238. Defendants' conspiracy links each Defendant to each of the state law causes of action described below.

DAMAGES

239. As a direct and proximate result of conduct of Defendants heretofore and hereafter set forth, Plaintiff suffered, and continues to suffer, injuries and damages that exceed all jurisdictional limits of the lower courts, including, but not limited to:

- a. violation of Plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution
- b. violation of Plaintiff's rights under New York State and City law;
- c. severe physical injuries and pain and suffering;
- d. emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety;
- e. loss of liberty and unlawful confinement, including during subsequent appearances

in criminal court where Plaintiff was forced to contest the false charges initiated by Defendants;

f. economic damage and loss;

g. property damage and loss.

240. Defendants are not entitled to raise the defense of contributory negligence for any claims brought pursuant to statute including 42 U.S.C. § 1983.

241. Pursuant to CPLR 1603, all causes of action alleged herein are exempt from the operation of CPLR 1601 by reason of one or more of the exemptions provided in CPLR 1602, including but not limited to, CPLR 1602(2), CPLR 1602(5), 1602(7) and 1602(11), and because Article 16 does not apply to civil rights claims, thus precluding defendants from limiting their liability by apportioning some portion of liability to any joint tortfeasor.

FIRST CAUSE OF ACTION
Excessive Force Pursuant to 42 U.S.C. § 1983
Against the Individual Defendants

242. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

243. At all times relevant herein, the Individual Defendants were acting under color of state law.

244. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

245. At all times relevant herein, the Individual Defendants' intentionally, and without probable cause to do so, seized and/or confined Plaintiff in an excessive manner, causing him physical injury.

246. At all times relevant herein, the force used by the Individual Defendants was beyond that which was warranted by the objective circumstances at the time each incident occurred.

247. At all times relevant herein, the force used by the Individual Defendants, including that which was used after Plaintiff's arrest, amounted to punishment without due process.

248. Defendants' conduct deprived Plaintiff of his right under the Fourth and Fourteenth Amendments to the United States Constitution to be free from excessive force.

249. Defendants' conduct deprived Plaintiff of his right under the Fourth and Fourteenth Amendments to the United States Constitution to be free from punishment without due process of law.

250. At all times relevant herein, the Individual Defendants failed to intervene in each other's obviously illegal actions.

251. Defendants' conduct deprived Plaintiff of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

252. Plaintiff was injured as a direct and proximate result of Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

Assault and Battery
Against all Defendants

253. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

254. Defendants' intentional conduct placed Plaintiff in imminent apprehension of harmful and/or offensive touching.

255. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him.

256. Defendants used excessive and otherwise unjustified force against the plaintiff.

257. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene, pursuant to the doctrine of *respondeat superior*.

258. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION

False Arrest and Unlawful Imprisonment Pursuant to 42 U.S.C. § 1983 *Against the Individual Defendants*

259. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

260. At all times relevant herein, the Individual Defendants were acting under color of state law.

261. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

262. At all times relevant herein, the Individual Defendants' intentionally, and without probable cause to do so, seized and/or confined Plaintiff and his property.

263. At all times relevant herein, Plaintiff was aware of the Individual Defendants' seizure and/or confinement of Plaintiff's person and property and did not consent to it.

264. At all times relevant herein, the Individual Defendants failed to intervene to stop the false arrest of Plaintiff and failed to release him from custody despite knowing his arrest was not based on probable cause.

265. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

266. At all times relevant herein, the Individual Defendants deprived Plaintiff of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

267. Plaintiff was damaged as a direct and proximate result of Defendants' violation of his rights, and in an amount that exceeds the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION
False Arrest and Unlawful Imprisonment Pursuant State Law
Against all Defendants

268. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

269. Defendants acting individually, and in concert with one another, intended to confine and/or seize Plaintiff.

270. Defendants acting individually, and in concert with one another, confined and/or seized Plaintiff.

271. Plaintiff was conscious of the confinement and/or seizure.

272. Plaintiff did not consent to Defendants' confinement and/or seizure.

273. Defendants' confinement of Plaintiff was not privileged.

274. Defendants lacked probable cause to confine and/or seize Plaintiff.

275. Defendants lacked the reasonable suspicion to confine and/or seize Plaintiff.

276. At all relevant times mentioned herein, Defendants acted extrajudicially, and without a warrant.

277. Defendants' seizure and/or confinement of Plaintiff subjected Plaintiff to a deprivation of liberty without probable cause.

278. The agents, servants, and employees of the CITY, including the Individual Defendants, knew or should have known that Plaintiff's confinement and/or seizure was unlawful and lacked probable cause, but failed to intervene to release him from the unlawful confinement despite their duties to do so.

279. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene to release Plaintiff, pursuant to the doctrine of *respondeat superior*.

280. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

FIFTH CAUSE OF ACTION
Unreasonable Search and Seizure and Excessive Force
Pursuant to Local Law 48 of 2021
Against All Defendants

281. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

282. Effective on May 24, 2021, Local Law 48 of 2021, amended the New York City Administrative Code (N.Y.C. Admin. Code §§ 8-801, *et seq.*) to create rights of security against unreasonable search and seizure.

283. Effective on May 24, 2021, Local Law 48 of 2021, amended the N.Y.C. Admin. Code (§§ 8-801, *et seq.*) to create rights of security against excessive force.

284. At all relevant times mentioned herein, Plaintiff was a person aggrieved as defined in N.Y.C. Admin. Code. § 8-801.

285. At all relevant times mentioned herein, Plaintiff was subjected to and/or subjected to the deprivation of his rights granted and/or protected by N.Y.C. Admin. Code. § 8-802.

286. At all relevant times mentioned herein, the Individual Defendants were covered individuals as defined in as defined in N.Y.C. Admin. Code. § 8-801.

287. At all relevant times mentioned herein, Defendant CITY was the employer of the Individual Defendants and law enforcement officers who violated Plaintiff's rights as alleged herein.

288. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against unreasonable search and seizure.

289. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against excessive force.

290. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against excessive force regardless of whether such force was used in connection with a search or seizure.

291. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY, violated Plaintiff's right of security against unreasonable search and seizure guaranteed by N.Y.C. Admin. Code. § 8-802.

292. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY, violated Plaintiff's right of security against excessive force guaranteed by N.Y.C. Admin. Code. § 8-802.

293. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY failed to intervene in the violation of Plaintiff's rights secured by N.Y.C. Admin. Code. § 8-802.

294. At all relevant times mentioned herein, Defendant CITY is liable for the acts and omissions of its police officers, who are covered individuals including the Individual Defendants pursuant to N.Y.C. Admin. Code. § 8-803(b).

295. Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts, as a direct and proximate result of the violations of Plaintiff's rights guaranteed by N.Y.C. Admin. Code. § 8-802.

296. Plaintiff has suffered, and continues to suffer, severe physical injuries, emotional distress, economic losses, and was unlawfully confined in violation of his rights guaranteed by N.Y.C. Admin. Code. § 8-802.

297. N.Y.C. Admin. Code. § 8-802 prohibits Defendants from raising as a defense to this cause of action, the defenses of qualified immunity or "any other substantially similar immunity."

298. The CITY has, by legislative pronouncement, and pursuant to the Mayor's refusal to veto N.Y.C. Admin. Code. § 8-801, et seq., knowingly waived its sovereign immunity with respect to the portions of the law which permit punitive damages and prohibit the use of immunity defenses as stated therein.

299. Pursuant to N.Y.C. Admin. Code. § 8-805, Plaintiff is entitled to compensatory damages, punitive damages, attorneys' fees and costs, injunctive relief, and other equitable relief as the Court deems appropriate.

SIXTH CAUSE OF ACTION

Negligence, Negligent Infliction of Emotional Distress, and Negligent Hiring, Retention, Training, and Supervision *Against All Defendants*

300. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

301. Defendant CITY owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

302. Defendant CITY breached those duties of care.

303. Defendant CITY placed Defendants in a position where they could inflict

foreseeable harm.

304. Defendant City knew or reasonably should have known of the propensities of its employees, including the Individual Defendants, to commit civil rights violations and other unethical, corrupt, and violent acts.

305. Upon information and belief, said personnel files, records and disciplinary histories will demonstrate that the CITY was fully aware of the Individual Defendants' past constitutional violations, unsuitability for police work, misconduct, violence, criminality, and/or corrupt behavior, and as such, of the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for public employment in general.

306. Upon information and belief, the CITY failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the CITY's tacit approval of such misconduct or the CITY's deliberate indifference towards the civil rights of those who may interact with its employees, including the Individual Defendants and their fellow officers.

307. Upon information and belief, Defendant CITY failed, or outright refused, to correct the prior unconstitutional, violent, corrupt, or dishonest behavior of the officers at issue, including the Individual Defendants, and thus, failed to prevent the exercise of such behavior against Plaintiff.

308. Defendant CITY failed to take reasonable measures in hiring, training, retaining and supervising its employees, including the Individual Defendants that would have prevented the aforesaid injuries to Plaintiff.

309. Defendants negligently breached their duties of care to Plaintiff and in doing so,

inflicted emotional harm upon Plaintiff.

310. Plaintiff was physically injured and suffered understandable mental trauma as a result of being brutalized and violated by the Individual Defendants and the CITY.

311. Defendants operated their vehicle as part of their employment with the CITY.

312. Defendants had a duty to operate their vehicle with reasonable care.

313. Defendants failed to operate their vehicle with reasonable care.

314. Defendants operated the vehicle for a common objective.

315. Defendants had an understanding that each shared the right to control the operation of the vehicle regardless of which Defendant was designated the vehicle's operator.

316. Defendants' shared control and/or had the right to share control of the vehicle's operation.

317. Defendant CITY negligently entrusted its vehicle to Defendants.

318. Defendant CITY knew or should have known Defendants would not operate the vehicle with reasonable care.

319. Defendants' vehicle made contact with Plaintiff as a result of Defendants' failure to operate the vehicle with reasonable care.

320. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene or who otherwise caused Plaintiff harm pursuant to the doctrine of *respondeat superior*.

321. At all times relevant herein, the Individual Defendants failed to intervene in the obviously negligent, careless, reckless, and illegal actions of their fellow officers including those of the other Individual Defendants.

322. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

SEVENTH CAUSE OF ACTION
Malicious Prosecution Pursuant to 42 U.S.C. § 1983
Against the Individual Defendants

323. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

324. At all times relevant herein, the Individual Defendants were acting under color of state law.

325. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

326. The Individual Defendants initiated a criminal prosecution against Plaintiff which caused Plaintiff to be prosecuted.

327. The Individual Defendants initiated a criminal prosecution against Plaintiff without probable cause.

328. The Individual Defendants did not believe and/or did not reasonably believe that Plaintiff had committed the crimes and/or violations charged.

329. The facts alleged by the Individual Defendants were insufficient as a matter of law to sustain the crimes charged.

330. The Individual Defendants acted with malice, which may be inferred from the lack of probable cause.

331. The Individual Defendants' lack of probable cause for each or any charge they levied against Plaintiff is proof of malice.

332. The Individual Defendants initiated the prosecution of Plaintiff maliciously, and for purposes other than a reasonable belief that Plaintiff had committed the crimes charged.

333. The Individual Defendants' false and/or incomplete statements and/or testimony to the district attorney is proof of their malice.

334. At all times relevant herein, the Individual Defendants failed to intervene in the obviously illegal actions of their fellow officers including those of the other Individual Defendants.

335. The criminal proceedings were terminated in Plaintiff's favor.

336. The Individual Defendants' conduct deprived Plaintiff of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

337. Plaintiff was injured as a direct and proximate result of The Individual Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

EIGHTH CAUSE OF ACTION
Malicious Prosecution Pursuant State Law
Against all Defendants

338. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

339. Defendants initiated a criminal prosecution against Plaintiff which caused Plaintiff to be prosecuted.

340. At the time Defendants initiated the criminal prosecution against Plaintiff, they lacked probable to believe that Plaintiff was guilty of any of each crime they accused Plaintiff of committing.

341. The facts alleged by Defendants were insufficient as a matter of law to sustain the crimes charged.

342. Defendants did not believe and/or did not reasonably believe that Plaintiff had committed any of the crimes charged.

343. Defendants initiated the prosecution of Plaintiff maliciously, and for purposes other

than a reasonable belief that Plaintiff had committed the crimes charged.

344. Defendants' lack of probable cause for each or any charge they levied against Plaintiff is proof of malice.

345. Defendants false and/or incomplete statements and/or testimony to the district attorney is proof of their malice.

346. The criminal proceedings were terminated in Plaintiff's favor.

347. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene, pursuant to the doctrine of *respondeat superior*.

348. At all times relevant herein, the Individual Defendants failed to intervene in the obviously illegal actions of their fellow officers including those of the other Individual Defendants.

349. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

NINTH CAUSE OF ACTION
Pursuant to 42 U.S.C. § 1984, *Monell* claim
against Defendant THE CITY OF NEW YORK

350. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

351. Defendant CITY maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, and tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative conduct.

352. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

353. Defendant City, its policymakers and supervisors failed to provide adequate

training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

354. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

355. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

356. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

357. Plaintiff was damaged as a direct and proximate result of Defendants' violation of his rights, and in an amount that exceeds the jurisdictional limits of all lower courts.

358. The CITY OF NEW YORK is liable to Plaintiff given its recalcitrant patterns and practices as well as persistent failure to train its agents, servants, and employees with respect to: 1) *Debour* and/or analyzing the conduct required to stop, question, frisk, pursue, and detain and/or arrest citizens in street encounters; 2) the use of BWC; 3) providing and/or obtaining emergency medical treatment for arrestees; and 4) the duty to intervene to prevent other law enforcement officers from violating the civil rights of arrestees and/or citizens.

359. Filed on January 31, 2008, *Floyd v. City of New York*, remains open for Court appointed monitorship of THE CITY OF NEW YORK's compliance with the settlement

agreement obtained subsequent to the Court's finding that THE CITY OF NEW YORK engaged in unconstitutional and discriminatory patterns and practices in its use of Terry Stops also known as "stop and frisk" or "stop, question, and frisk" [hereinafter as "SQF"].

360. The pleadings, transcripts, and decision in *Floyd* as well as the monitor reports are incorporated hereto by reference.

361. The 2020 NYPD Enforcement Report admitted that the majority of NYPD uniformed officers were white.

362. The actions of the Individual Defendants were part of THE CITY OF NEW YORK's custom and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of THE CITY OF NEW YORK under the NYPD's "Stop, Question and Frisk" policy or program [hereinafter as "SQF" or "Stop and Frisk"].

363. Under Stop and Frisk, THE CITY OF NEW YORK permitted, condoned and/or acted with deliberate indifference to the rights of its citizens and visitors, especially those who are Black males.

364. The remedial order in *Floyd v. City of New York*, mandated the involvement of a court-appointed monitor to establish policies and procedures for NYPD's body-worn camera program.

365. There is no question that the implementation of BWCs across the NYPD has been useful in identifying officers who are responsible for unlawful acts and constitutional violations.

366. However, NYPD is also aware that officers are intentionally removing and/or obscuring their BWC footage before, during and after problematic encounters.

367. As reported by the Civilian Complaint Review Board (CCRB) in February of 2020,

and observed by the undersigned in may force cases, including the instant case, Officers have also been seen and heard intentionally obscuring their BWCs or signaling to each other to remove or turn off their cameras to avoid documenting misdeeds, crimes, and constitutional violations.

368. In February of 2020, the CCRB recommended that NYPD amend its BWC policies to make intentionally hindering a BWC recording a prohibited act.

369. To date, NYPD has refused to amend its policies to prohibit intentionally hindering a BWC recording.

370. The refusal to promulgate a policy which makes clear that intentionally obscuring one's camera is misconduct, has clearly empowered unscrupulous officers like the Individual Defendants to obscure their BWC while committing unlawful acts and while conspiring to coverup said unlawful acts.

371. There is no justifiable reason for THE CITY OF NEW YORK to continue a policy which allows this blatant unconstitutional misconduct to continue unabated, especially as the act of obscuring a BWC to prevent one's actions from being recorded, demonstrates a fundamental lack of integrity shared only by the worst officers.

372. Similarly, NYPD has failed to properly train its officers to prevent unlawful street-encounters,

373. The Patrol Guide 212-11 covers investigative encounters, but at 16 pages long, most officers have not read or understood the law which governs street encounters, or the policy enacted by NYPD which purports to obtain their compliance with the law.

374. Training on SQF and other critical legal and procedural concepts that officers frequently misunderstand and/or ignore has never ventured beyond pre-recorded rote, videos that recite the law without giving any relevant context.

375. These videos are usually shown at roll call, not formalized training, and quickly ignored after they are viewed.

376. For all of the millions of dollars that THE CITY OF NEW YORK spends on tactical and weapons trainings, and policies related thereto, it spends very little time and money ensuring that its employees are properly trained in realistic scenarios geared toward conducting the basic street-level encounters that make up the majority of citizen interaction and majority of constitutional violations by the NYPD, as here.

377. While the individual Defendants bear responsibility for their own acts and omissions, THE CITY OF NEW YORK is also responsible for its egregious and longstanding failures that led to the violation of Plaintiff's constitutional rights and irreparably harmed Plaintiff.

378. THE CITY OF NEW YORK has failed to train its officers on their duty to intervene in unconstitutional conduct by other officers, including the use of excessive force and the denial of medical treatment to those like Plaintiff, who are injured by excessive force.

379. THE CITY OF NEW YORK has failed to train its supervisors and investigators to ensure that officers who commit misconduct are supervised, retrained, demoted and/or terminated.

380. Instead, THE CITY, if it punishes officers at all, merely demands that they forfeit some of their numerous vacation days even where they have engaged in egregious uses of excessive force and misconduct.

381. The CITY rarely, if ever, punishes or even investigates the failure of officers to intervene in excessive force or other misconduct that they witness, despite having a stated policy that holds that to fail to intervene and/or fail to report misconduct, is itself misconduct.

382. THE CITY OF NEW YORK knows to a moral certainty that the ongoing failure to train its officers will lead to officers making unconstitutional choices that sometimes have horrific

and deadly consequences.

383. Plaintiff was damaged as a direct and proximate cause by THE CITY OF NEW YORK's ongoing failure to train its officers, and failure to promulgate policies that encourage the lawful policing of New York City and discourage unlawful, dishonest, and criminal behavior among NYPD officers as articulated throughout the complaint.

384. Plaintiff was damaged as a direct and proximate cause by defendants' assault and battery.

385. Plaintiff's damages exceed the jurisdictional limits of all lower courts.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the following be entered jointly and severally against Defendants and for a jury trial on all causes of action:

- a. A declaratory judgment that the actions, conduct and practices of Defendants complained of herein violated Plaintiff's rights, privileges, and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution and applicable federal law; and
- b. A declaratory judgment that the actions, conduct and practices of Defendants complained of herein violated Plaintiff's rights, privileges, and immunities secured by the laws of the State and City of New York; and
- c. Compensatory damages in an amount to be determined at trial for the serious physical injuries, mental and emotional anguish, unlawful search and seizure, human rights violations, and economic damages sustained by Plaintiff as a result of the events alleged herein; and

- d. Punitive damages and any applicable penalties in an amount to be determined at trial; and
- e. Awarding Plaintiff reasonable attorneys' fees pursuant to fees pursuant to 42 U.S.C. § 1988 and New York Statute, together with the costs of this action; and
- f. Prejudgment interest on all amounts due; and
- g. Such other further relief as the Court may deem appropriate.

DATED: New York, New York
February 26, 2024

Respectfully,

LIAKAS LAW, P.C.
Attorneys for the Plaintiff
PAOLO CRUZATTY
40 Wall Street, 50th Floor
New York, New York 10005
Tel: (212) 937-6655



CASSANDRA ROHME, ESQ.

VERIFICATION

CASSANDRA ROHME, an attorney duly admitted to practice in the Courts of the State of New York, says that she is an associate in the office of Liakas Law, P.C., attorneys for Plaintiff PAOLO CRUZATTY, and affirms the following statements to be the truth under penalties of perjury, pursuant to CPLR § 2106:

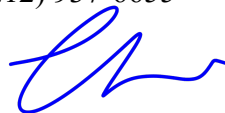
That she has read the foregoing Summons and Complaint and knows the contents thereof; that the same is true to her knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes them to be true based on conversations with the Plaintiff and investigations conducted by the office of the undersigned.

Deponent further states that the reason why this verification is not made by Plaintiff PAOLO CRUZATTY is that Plaintiff is not presently in the County where the undersigned maintains her office.

DATED: New York, New York
February 26, 2024

Respectfully,

LIAKAS LAW, P.C.
Attorneys for the Plaintiff
PAOLO CRUZATTY
40 Wall Street, 50th Floor
New York, New York 10005
Tel: (212) 937-6655



CASSANDRA ROHME, ESQ.